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Citizenship Without Belonging: The Urdu-Speaking (Bihari) Community in Bangladesh

Introduction

Nearly fifty years ago, the Supreme Court of Bangladesh gave formal recognition to the people who speak Urdu also known as the "Bihari" community, as citizens of the country but hundreds of thousands of those individuals continue to reside in the same congested camps that their grandparents first occupied in 1971, this difference between their legal and actual position in society is the central problem of this essay. Here, I examine the situation by using the work of Rogers Brubaker on how the French Revolution created the modern connection between being a citizen and being part of a nation. In addition I use the idea from Benedict Anderson that a nation is an "imagined community" plus the theory from Étienne Balibar regarding exclusion that happens internally.

It is my argument that the situation of the Bihari people shows a large problem within the modern systems of citizenship. For a person to belong to a place, formal and legal membership in a state is required but it is not enough on its own. As nations are communities that individuals imagine, the groups control who is a "real" member even after the law determines who is a citizen. On the basis of evidence about the historical lack of power of the community (Rahaman et al., 2020), the legal status that people argue about (Muquim, 2023) and the unfair treatment that they experience today (MacDonald, 2021; Dilshad & Ahmed, 2024; Hossen & Moore, 2025; Siddiqi 2023), the text shows how those factors work together. Due to the interaction of citizenship, imagination alongside exclusion, we can make sense of that fact with the idea of a community caught between legal inclusion and real life outside societal edges.

Historical Background of Nation-State Formation

Brubaker argues that modern citizenship is a historical invention rather than a permanent concept. In the period before the French Revolution, membership in the ancient régime functioned as a "patchwork of overlapping corporate jurisdictions". During this time rights were based on belonging to a specific guild, province or estate instead of a single status of citizen. That is why it was the Revolution that replaced those piecemeal systems with a legally uniform nation. In doing so, the Revolution made the modern "foreigner", defined as someone who exists outside of that community now constructed. Accordingly, nation states are inherently nationalistic or else a homogeneous population is only logical with respect to an unambiguous external border.

As for Bangladesh, the process of building the nation occurred in a comparable way. The land that is now Bangladesh was organized around a specific "core citizen" ,this identity belongs to the Bengali speaking Muslim who struggled for political and linguistic independence, first against colonial authorities and then against West Pakistan. With Rahaman et al. (2020), one can trace how Urdu speaking Muslims from Bihar moved to East Pakistan as Muhajirs after the 1947 Partition. And while the migrants were first received as religious relatives, religion is not enough to maintain a common national identity , this became clear when Jinnah tried to establish Urdu as the only state language of Pakistan which triggered the 1952 Language Movement and served as the ideological origin of Bengali nationalism.But the Biharis were on the wrong side of this new border line, like Brubaker's post-revolutionary foreigner, because when Bangladesh's 1971 Liberation War displace religious nationhood with a Bengali ethnolinguistic one, they (to be repeated) had sided with West Pakistan (Rahaman et al., 2020).

To provide a legal status, Presidential Order 149 of 1972 granted citizenship to individuals who lived there permanently as of March 1971 (Rahaman et al., 2020) ,but many people from the Bihari community chose to return to Pakistan at first instead of accepting this status. Because of this decision, the state later disqualified them from becoming citizens. Then again officials disputed the claims of other individuals for many years even though those people satisfied the legal requirements (Rahaman et al., 2020). In a recent study, Muquim (2023) describes how this history continues. By using a framework that focuses on status, rights and identity, he demonstrates that Urdu speakers obtained a legal status quickly. It took many decades for them to gain rights and a recognized identity. Hence, they had to engage in more legal cases in 2003 and 2008. There is one narrative that exists in two forms regarding how the situation began and how it continues. There is a durability in this process that matches what the theory by Brubaker predicts. With those changes, the government established that a citizen who speaks Bengali and practices Islam is the standard type of member. And the actions moved the Urdu speaking group to a position where they have less influence. If we consider what Anderson describes, the community is imagined in a way where symbolic limits define who is a legitimate member even if a person holds legal citizenship.

Imagined Community & Symbolic Boundaries

Anderson's definition of the nation as "an imagined political community imagined as both inherently limited and sovereign" explains why exclusion persists after the law changes (Anderson, 1983/2006). Because most members of a nation never meet one another, belonging depends on a shared, mediated image of community · produced, Anderson argues, through "print-capitalism," which fused dispersed populations into a felt community of readers. Language is central to constructing this "image of communion" and to how insiders recognize one another.

Bangladesh's national imagination was built around Bangla, forged in opposition to Urdu. Urdu speakers thus occupy a stark position in Anderson's framework: their mother tongue is

not merely different, it is the language against which Bengali national consciousness first defined itself in 1952 (Rahaman et al., 2020). Language-attitude data from Dilshad and Ahmed (2024) show this boundary still operating within the community: among first-generation speakers surveyed, 72% described Urdu as "very prestigious" and 96% reported expressing emotion more naturally in Urdu than Bangla, yet 94% reported using Bangla at work, a linguistic double life mirroring Anderson's point that print-language communities also exclude. The public cost, in defining speech, complained one respondent interested only in speaking Urdu: We cant speak the language outside this camp; if we communicate using Urdu out there, the members of Bengali community look at us with narrow eyes. "Some Bengalis feel that every other Bihari conspired against the Bangalis in 1971 (Dilshad & Ahmed, 2024). Concealment strategies confirm this, members avoid Urdu in public, and some register false addresses to keep children in mainstream schools (MacDonald, 2021) behavior that only makes sense if language marks who belongs to the imagined "we," independent of legal status.

Hossen and Moore's (2025) qualitative study sharpens this picture. Where Dilshad and Ahmed (2024) find strong private attachment to Urdu, Hossen and Moore interview a broader cross-section and find participants acutely aware of Urdu's "illegitimacy in public perceptions" , a stigma motivating speakers to prioritize Bangla for social and economic integration despite strong private attachment. Together the studies show a single language operating under two regimes of value: prestigious at home, delegitimized in public. Hossen and Moore also bear on the "media narratives" prompt, arguing that "historical past, nation-building discourses, and media representations" have jointly reshaped Urdu speakers' language choices, naming media framing as one force sustaining the stigma.
These faculty prompts about symbolic framing can now be answered directly. Linguistically, the community is marked by speaking Urdu itself, hardened into public "illegitimacy" (Hossen & Moore, 2025) and tied by Akbar's testimony directly to 1971 suspicion. Religiously, the community is not straightforwardly "other," since both groups are predominantly Sunni Muslim; but religion ceased to be the primary marker of belonging once nationhood was redefined around language, so shared faith does little to offset difference reinforced by Redclift's (Rahaman et al., 2020) observation that shared practices like Moharram still trigger accusations of "wrong" observance. Culturally, the community is often portrayed as "less modern": Nahar's (2000, as cited in Rahaman et al., 2020) description of camp life · overcrowded housing, absent healthcare, high illiteracy reflects structural neglect, not inherent traits, yet sustains stereotypes of backwardness regardless. In danger, the community remains associated with wartime collaboration; this surfaces in present-day rhetoric, as when a rival candidate asked a Khulna man running for ward council, "Is this why we liberated our country? To elect a Bihari?" (MacDonald, 2021) aimed at a man with no personal connection to 1971.

On national histories and textbooks, Siddiqi (2013) supplies sharper evidence than either theory paper: she argues Bangladeshi nationalist historiography has actively erased the 1947 partition and the Biharis' place within it, rendering the community "written out of Bangladeshi nationalist discourses" and reduced, in collective memory, to the pejorative dalal, or wartime collaborator. This selective forgetting freezes the community at its most contested moment (1947·1971) rather than updating memory to reflect legal status · the narrative exclusion Anderson's framework predicts. On media narratives, Muquim (2023)

cites international news reports on the community, while Hossen and Moore (2025) argue media representations shape public perception; though Muquim does not analyze these in detail, their recurring titles "The Neglected 'Bihari' Community" (Deutsche Welle), "'Stranded Pakistanis', "The Forgotten Victims of India's Partition" (Al Arabiya) , suggest media discussions foreground humanitarian hardship over citizenship and belonging, reinforcing the community's marginal position in the national imagination. These symbolic boundaries are reproduced through state institutions and everyday practices, producing the unequal citizenship that Balibar conceptualizes as internal exclusion.

Internal Exclusion, Human Rights & Citizenship

Balibar's concept of internal exclusion bridges this symbolic marginalization and its institutional persistence today. Modern, universalist citizenship does not simply fail to eliminate exclusion; it has "a tendency to create new ones," since exclusion can hide inside categories that are formally universal (Balibar, 2015). Citizens can be "in society without being of society" legally inside, yet outsiders. Formal rights and lived "empowerment" are distinct axes: full legal citizenship does not guarantee the capacity citizenship is supposed to provide.

Implementation, however, has lagged badly. MacDonald (2021) interviews demonstrate some of the fallout: a woman from Mirpur recalls having been charged 10,000 taka for what should have been a 5,000 passport; a man from Khulna was told at his polling station in 2018 that his vote had "already been cast" when officials saw his camp address; reports indicate that employers often simply discard applications once they see a camp address; and universities usually deny admission altogether (MacDonald, 2021). Muquim (2023) observes how Urdu-speakers remain unable to access formal education and banking as "Geneva Camp" is not an address. As Balibar writes, such forms of administrative discretion across education, work, housing and passport effectively reproduce exclusion while not touching the question of legal citizenship at all.

Comparing the sources sharpens this point. Together, these studies show that legal reform alone cannot dismantle exclusion when administrative practices and social attitudes continue to reproduce it. Where Muquim (2023) shows Bangladeshi law now recognizing Urdu-speakers as citizens by nearly every formal measure, MacDonald's (2021) evidence shows recognition unmatched by administrative practice both studies describe, in Balibar's terms, the same population in the "gray area" between inclusion and exclusion. Hossen and Moore (2025) reach a parallel conclusion from language: citizenship status alone has not protected linguistic identity, hence their call for stronger legal protections, sensible only if formal citizenship and substantive protection are genuinely separate axes, as Balibar argues. His insistence that exclusion is a stable rule, produced by "the community itself" through accumulated institutional choices, explains why the 2008 ruling, a genuine legal victory, has not dissolved the underlying pattern.

Reflection

Working through this case has changed how I think about citizenship. Before engaging these theorists, I treated legal citizenship as the finish line of an inclusion story once a court declares a group citizens, the problem seems essentially solved. Balibar's argument that inclusion can itself be a site of ongoing, low-visibility exclusion is the single most important corrective this case offers: legal citizenship is better understood as an opening move than an ending, changing what discrimination is called but not necessarily whether it occurs. Brubaker points out that the border between citizen and foreigner is a historical construct associated with nation-building, which means a founding myth can subtly -- ed by who is listed under state law as a "real" member; Anderson describes how this sorting by unofficial criteria continues to be established since language and collective memory, not statute books are what people use to determine where someone belongs.I had assumed legal recognition was roughly sufficient to ensure equality. Studying the Urdu-speaking community's experience showed me instead that social acceptance and national identity often determine whether citizenship is meaningful in everyday life, regardless of what the law says. For a course on global citizenship, the implication is that citizenship cannot be studied only as a legal status; it must be studied as a lived, symbolic relationship between individuals and an imagined "we" that may never fully absorb them.

Conclusion

The Urdu-speaking community's exclusion has continued despite citizenship because citizenship, in Brubaker's, Anderson's, and Balibar's combined sense, was never only a legal category. Bangladesh's nation-state was constituted by a linguo-historical identity from which Biharis were narratively expelled in the moment of founding (Brubaker), an identity that is continuously reproduced through language, religion and collective memory rather than law (Anderson), one whose exclusion has now been internalized within formally universal citizenship rights expressed as administrative discretion over passports banking healthcare employment education it changes; simply be! The larger conclusion: full citizenship of a discriminated group is significant but not solely sufficient to ensure inclusion in the community. It demonstrates what inclusive citizenship entails beyond formal equality before the law. This includes recognition, dignity and with opportunities and social inclusion without being perceived as outsiders in the nation.

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